

Brazil Export Entity — Structuring Brief

TrueSight DAO / Agroverse

Prepared for Paloma — FounderHaus (to brief introduced legal counsel)

Date: 26 May 2026 (Updated with Breno/Tools for the Commons input)

1 • Purpose

TrueSight DAO operates Agroverse, a regenerative-agriculture network. The venture being formalised is a bot-enabled agricultural export bridge from Northern Brazil — beginning in the cacao-producing regions of Bahia and Pará — that moves verified produce from farming cooperatives and producers to buyers abroad.

The first destination market — the United States — is already fully formalised on the import side under a Delaware company, TrueTech Inc, the FDA-FSVP importer of record and the US Customs importer of record. We also intend to export to China and Europe, each served by its own dedicated importer entity.

The Brazilian export side is not yet formalised in a dedicated entity. Today, exports leave Brazil through the personal CNPJ of Matheus Reis Pereira (trading as "Black King"). That arrangement does not scale, concentrates Brazilian tax exposure on an individual, and cannot be operated by software agents.

2 • Executive Summary

We are evaluating two structural paths for the holding entity that will own the Brazilian export CNPJ. Both solve the same problem — replacing Matheus's personal CNPJ with a dedicated, DAO-owned export entity — but through different jurisdictions and at different cost/complexity.

Path A — Próspera LLC (original proposal): Incorporate in the Próspera ZEDE (Honduras special economic zone) as the holding company owning the Brazilian export CNPJ.

Path B — Wyoming UNA/DUNA (alternative): Form a Wyoming Unincorporated Nonprofit Association (UNA) via OtoCo (~\$50 gas, this week) which can later convert to a Decentralized Unincorporated Nonprofit Association (DUNA). The UNA/DUNA would own the Brazilian export CNPJ directly.

Core question for counsel: We need a comparative assessment of both routes:

1. Can a Wyoming UNA/DUNA legally own a Brazilian Ltda as a foreign quotaholder?
2. What does Próspera offer that the UNA/DUNA cannot?
3. What does the UNA/DUNA offer that Próspera cannot?
4. If both are viable, which is more appropriate for our specific use case?

3 • Background

TrueSight DAO

A values-driven, open-source organisation building social ventures and recording its operations transparently. Agroverse is its flagship program.

Agroverse

A regenerative-agriculture network connecting Northern-Brazilian farmers and cooperatives directly to conscious buyers. 30+ retail and venue partners carry Agroverse cacao.

TrueTech Inc — the existing US import entity

- **Form:** C-Corporation, Delaware
- **EIN:** 88-3411514
- **US Customs importer-of-record:** 88-341151400
- **FDA Food Facility Registration:** 12202640780 (VALID, exp. 2026-12-31)
- **Officer:** Zhiwen Teh (Gary Teh), President

4 · Current State & Problem

Brazilian exports currently flow through "Black King" — the individual CNPJ of Matheus Reis Pereira (CNPJ 50.042.585/0001-80), an Empresário Individual based in Ilhéus, Bahia.

Why this must change:

1. Personal tax liability on Matheus
2. Cannot be automated (AI agents need a corporate vehicle)
3. Single point of failure
4. Limited RADAR capacity
5. Wrong CNAE for exports (82.30-0-01 — services, not commerce)
6. No Inscrição Estadual or NF-e model 55 credentialing

Recommended CNAE for new entity: 46.23-1/04 — Comércio atacadista de cacau

5 · Proposed Structure — Two Paths

Path A: Próspera LLC (original proposal)

DAO contributors → Próspera LLC → Brazilian Export CNPJ → TrueTech Inc (US)

Próspera LLC specifics (from Breno, Tools for the Commons):

- Cost: \$300 + \$75 setup, \$230/year annual maintenance
- Tax: 1% flat on profits booked in Próspera

- Governance: 1 share = 1 vote; shares granted to contributors; sell back at NAV
- NAV buyback aligns with existing TDG redemption mechanism

Triangular trade structure (recommended by Breno):

- Brazilian CNPJ → sells to Próspera LLC (at cost + small margin)
- Próspera LLC → sells to TrueTech Inc (at wholesale price)
- TrueTech Inc → sells to Retailers (at wholesale price)
- Profit booked in Próspera LLC (1% tax)

This minimizes tax leakage: Brazil (low margin), Próspera (1%), US (pass-through).

Pros: Designed path; counsel identified (Layon Costa); clear tax advantage; triangular structure validated

Cons: \$375 setup + \$230/yr; 2-6 months; banking TBD

Path B: Wyoming UNA/DUNA (alternative)

DAO contributors → Wyoming UNA/DUNA → Brazilian Export CNPJ → TrueTech Inc (US)

Pros: ~\$50 (this week); US jurisdiction; Wise banking; simpler ownership

Cons: Unclear if Wyoming nonprofit can own Brazilian for-profit Ltda

6 · Ownership — Mapped to DAO Contributor Ledger

Regardless of path, the holding entity is owned by DAO contributors proportional to TDG earned. As of 26 May 2026: 316 contributors, ~2,263,640 TDG issued.

Key question for counsel: How to translate a ~316-holder, continuously-updating, TDG-weighted contributor base into recognised ownership of the Próspera LLC or Wyoming UNA.

7 · What We Need From Counsel

For Brazilian foreign-trade / customs & tax counsel

- Most suitable Brazilian legal form for foreign-owned export entity
- Foreign-ownership mechanics (resident legal representative, CPF/CNPJ, RDE registration)
- RADAR habilitation modality and timeline
- Siscomex / Portal Único API access for AI-agent filing
- Tax regime selection (Simples vs Lucro Presumido vs Lucro Real)
- Transfer-pricing between Brazilian entity, Próspera LLC, and TrueTech Inc
- Clean migration path from Black King arrangement
- Multi-market export implications (US, China, EU)

For Próspera-jurisdiction incorporation counsel

- Appropriate Próspera entity type (LLC confirmed by Breno)
- Banking, substance, and reporting requirements
- Recognition as foreign quotaholder in Brazil
- Interaction with TrueTech Inc (US) — Brazil-side only or above TrueTech too?
- Suitability for DAO / tokenised governance and AI-agent operation

On ownership & securities (for both counsel)

- Translating ~316-holder TDG-weighted contributor base into legal ownership
- Securities-law treatment of TDG-as-ownership across Próspera, Brazil, and US
- Snapshot / cut-off mechanics for continuously-updating ownership

8 · The Brazilian Supply Base

Verified suppliers already onboarded under TrueTech Inc's FSVP program:

Trade name	Location	Products
Coopercabruca	Itabuna, BA	cacao nibs, mass, molasses
Black King	Ilhéus, BA	nibs, mass, molasses, tea, ceremonial cacao
CEPOTX	Altamira, PA	organic cacao almonds
Mu Gelato	Florianópolis, SC	chocolate-coated coffee bean candy
Hau Cacau	Porto Alegre, RS	cacao mass

All hold active FDA Food Facility Registrations. Full records at github.com/TrueSightDAO/fda_fsvp.

9 · Key Person

Gary Teh (Zhiwen Teh) — President of TrueTech Inc; proposed responsible principal for the new structure.
Brazilian CPF: 039.733.078-22.

10 · Data Room & Compliance Status

- FSVP/FDA compliance: all suppliers VALID (exp. 2026-12-31)
- Public repository: github.com/TrueSightDAO/fda_fsvp
- Machine-readable profiles: entity.json per supplier
- Transparency surfaces: truesight.me, truesight.me/agroverse

11 · Glossary

- **CNPJ** — Brazilian company tax/registration ID
- **CPF** — Brazilian individual tax ID
- **RADAR** — Receita Federal license for foreign trade via Siscomex
- **Siscomex / Portal Único** — Brazil's Integrated Foreign Trade System
- **DU-E** — Declaração Única de Exportação (single export declaration)
- **Despachante aduaneiro** — Licensed Brazilian customs broker
- **FSVP** — FDA Foreign Supplier Verification Program
- **CNAE** — Classificação Nacional de Atividades Econômicas
- **NF-e** — Nota Fiscal eletrônica (model 55 for exports)
- **IE** — Inscrição Estadual (state tax registration)
- **Próspera (ZEDE)** — Special economic / governance jurisdiction, Honduras
- **TDG** — TrueSight DAO governance token